

Do you think this current system provides adequate accountability around short-term rentals in San Francisco? In your response, describe why you believe the system is adequate or inadequate. If you believe the system is inadequate, discuss a possible change in actions required to improve accountability in this system. You may refer to the [SWE Code of Ethics](#) as you think through your response.

I think that the current system for holding short-term rental hosts accountable in San Francisco is inadequate. The system relies on a fragmented chain of responsibility where hosts are expected to self-report their registration numbers. Airbnb should display them, and third parties should scrape/verify that data. This project demonstrated this problem, where some listings had missing policy numbers but remained active on the platform. A system that depends on self-disclosure without enforcement creates a gap of accountability.

One improvement would be for Airbnb to implement an automated validation at the point of creating a listing. Before a listing goes live, the platform could verify the submitted policy number against the city's planning office database using an API. This would shift accountability to the platform rather than relying on hosts. The SWE Code of Ethics supports this direction, where software engineers should act consistently with the public interest.

As discussed in the introduction, the legality of web scraping is still uncertain in the US. Skim through the [Legal Issues section of Web Scraping in the US on Wikipedia](#) and [this article about the legal issues with the Computer Fraud and Abuse Act](#), and describe at least one factor you believe is important to consider when discussing the legality of web scraping and why.

One factor I think is especially important when discussing the legality of web scraping is whether the scraped data is public and whether the act of scraping causes harm. The Computer Fraud and Abuse Act was originally written to prosecute malicious hacking, but it can potentially cover scraping activities. There is tension between accessing a website in a way that violates its TOS, which can be interpreted as not allowed by the CFAA.

This factor is important because it affects how we should think about projects, such as this one. We scraped HTML files rather than making live requests, but there is still an underlying question. Even when data is publicly available, does a platform have the

right to prevent the collection of it? Until clearer legislation emerges, developers doing web scraping should weigh the TOS, the purpose of the data collection, and whether the activity could be harmful.

Scraping public data does not always lead to positive results for society. For example, look to [Facebook–Cambridge Analytica data scandal - Wikipedia](#) or [Clearview AI - Wikipedia](#). Many argue that using someone's personal data without their consent (even if publicly provided) is unethical. Web scraping requires thoughtful intervention. Develop at least two guidelines you think are important to consider when deciding whether to do web scraping.

The Facebook-Cambridge Analytica scandal and the rise of facial recognition companies such as Clearview AI show that publicly accessible data can be used in ways that users might not have consented to. One guideline I think is important is to consider whether individuals whose data is being collected would expect it to be used in this way. Posting something on a platform doesn't mean that a person consents to that data being used in a harmful way. If people are likely to object if they found out the exact reason why their data is being used, this means that scraping should be reconsidered. Data shared in one context should be respected even when the data is technically public.

Another guideline is to consider the benefits or harms when performing a scraping project. Scraping Airbnb listing data for regulatory reasons is beneficial with minimal risk of individual harm. However, scraping profile photos to build a face recognition database creates risks of surveillance and loss of anonymity. Before beginning a scraping project, developers should figure out who would be harmed, in what ways, and whether the benefits outweigh the negatives. If a scraping project doesn't pass this analysis, it should not proceed.